Data Sharing Agreement Between London Borough of Camden and Imagineer

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1. Introduction to the Sharing

This Data Sharing Agreement [DSA] documents how the parties to this agreement, London Borough of Camden and Imagineer will share personal data about children and their families at significant risk of needing residential placement and a project to put in place an enhanced package of support to avoid family breakdown. For simplicity, the Partner Organisation will be referred to as 'Partner'. By signing this Agreement, the Parties agree to accept the conditions set out in this document, according to their statutory and professional responsibilities, and agree to adhere to the procedures described.

This Agreement has been developed to:

- Define the specific purposes for which the signatory agencies have agreed to share information.
- Outline the Personal, Special Category and Criminal Data to be shared.
- Set out the lawful basis conditions under UK GDPR and Data Protection Act 2018 through which the information is shared, including reference to the Human Rights Act 1998
- Stipulate the roles and procedures that will support the processing/sharing of information between agencies.
- Describe how the rights of the data subject(s) will be protected as stipulated under the data protection legislation.
- Describe the security procedures necessary to ensure that compliance with responsibilities under data protection legislation and agency-specific security requirements.
- Describe how this arrangement will be monitored and reviewed.
- To illustrate the flow of information from referral through processing and outcome.

Parties to this agreement cannot amend or add appendices unless agreed as part of a formal review. It is expected that each party will have procedures, processes and policies sitting underneath this agreement, for their respective organisations. These will, for example, describe the specific processes for secure transfer of data.

1.1. Responsibilities of parties involved

The Parties are registered Data Controllers under the Data Protection Act. All parties confirm that they comply with data protection legislation by:

- having a lawful basis for processing and sharing personal data.
- ensuring data quality.
- storing and sharing information securely, with access management controls.
- having policies and procedures for compliance with data protection legislation including for managing data subject rights and complaints, identifying and managing data breaches/incidents and retention & disposal.
- ensuring that mandatory training is undertaken regularly by their employees to ensure they are clear and up to date on their responsibilities. Every individual must uphold the principles of this agreement and overarching confidentiality, and seek advice from the relevant Data Protection Officer when necessary.
- undertaking appropriate data protection due diligence checks with any contractors/data processors they employ, and ensuring that a written agreement is in place with each data processor, and that all data processors will be bound by this agreement.

- having written processes for the processing of data to ensure employees use and share personal data in line with data protection law, the data protection principles, and this agreement.

Organisations and their staff must consult the organisation's Data Protection Officer/Information Governance Manager and/or Caldicott Guardian if they are unsure at any point in the processing and sharing of personal data.

1.2. Confidentiality and vetting

Each Partner must ensure that there are appropriate written contracts or agreements with employees, agency staff, volunteers etc. These must include requirements to ensure compliance with policies which include confidentiality. Each Partner must ensure that suitable vetting has taken place. This may be through standard employee checks and DBS checks.

1.3. Assessment and review and Termination of agreement

A review of this information sharing agreement will take place yearly, unless otherwise agreed by the organisations' Data Protection Officers. The aim of the review will be to ensure the purposes are still relevant, the scope has not slipped, the benefits to the data subjects and organisations are being realised, and the procedures followed for information security are effective. Changes in legislation and developments in the areas of public sector data sharing will be considered as and when they arise, as will any changes to the signatory parties. In the event of termination of this agreement each Party may continue to hold information originating from other parties for which they are Data Controller.

2. Purpose and Benefits

2.1. Purpose

This agreement covers the sharing of information by and between the listed parties for the purpose of the Closer to Camden pilot project. This pilot project aims to evidence that early prevention through implementing intensive local packages of care interventions could help prevent children from entering residential provision. Families being considered for this pilot project are on the Camden Dynamic Support Register - a register of children and young people where there are concerns that they are at risk of being admitted to an in-patient mental health unit or residential school placement.

The families supported by the pilot project will receive a **Personal Health Budget (PHB)** from North Central London Integrated Care Board (NCL ICB) (in addition to their existing support from Social Care) if agreed by the ICB personal health budget panel. The PHB will enable families to receive care and support that best meets the current needs of their child and to enhance existing support being received.

Imagineer, who have been appointed by NCL ICB will develop care plans with families and their child(ren) on how the integrated budget could help the family and how the family will be use the funds allocated.

2.2. Benefits

The sharing will allow both partners to better deliver their statutory series and will allow more effective use of resources, giving more joined up working which increases efficiency. The public will benefit from this approach, as services will be delivered in a more streamlined way that utilises the information shared to provide better tailored and appropriate services.

Families supported by the pilot project will receive a Personal Health Budget (in addition to their existing support from Social Care) to enable them to receive care and support that best meets the current needs of their child. This is to enhance existing support being received, and to reduce escalation of need and therefore avoid unnecessary inpatient setting admission. This would also help achieve better outcomes for the child and their families.

The benefits of this DSA are to:

- Cover the sharing of information for Personal Care Plans to be developed including finding out more about the needs of the family and child, as well as access to the social care assessment and the social care recommendation for how the budgets can be used to support families based on assessed needs.
- Sets parameters for sharing personal data and clearly identifies the responsibilities of organisations.
- Identify the correct lawful basis to share personal information.
- Ensure information is shared whenever there is a requirement to do so.
- Enables authorities to share data on performance, quality assurance, learning and impact analysis.

2.3. Lawful Basis

For the Council:

Personal Data Processing: Article 6 (1) – (e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller.

Special Category Personal Data Processing: Article 9 (2) (b) social protection law - processing is necessary for the purposes of carrying out the obligations and exercising specific rights of the controller or of the data subject in the field of employment and social security and social protection law; 9 (2) (g) substantial public interest - processing is necessary for reasons of substantial public interest with the Data Protection Act Schedule 1, Part 2 condition is being para 6 Statutory etc., and government purposes

For Imagineer:

Personal Data Processing: Article 6 (1) – (e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller.

Special Category Personal Data Processing: Article 9 (2) (b) social protection law - processing is necessary for the purposes of carrying out the obligations and exercising specific rights of the controller or of the data subject in the field of employment and social security and social protection law; 9 (2) (g) substantial public interest - processing is necessary for reasons of substantial public interest with the Data Protection Act Schedule 1, Part 2 condition is being para 6 Statutory etc., and government purposes

2.4. Consent

The parties will often work collaboratively with data subjects and aim for agreement with them on the actions to be taken. However, it is recognised that for a public authority this is different to using consent (Article 6 (a)) or explicit consent (Article 9 (a)) as the lawful basis conditions used for processing under

this agreement. Consent is not generally the lawful basis the public sector organisations use for processing information shared under this agreement. It is noted that where consent is not the lawful basis for processing, consent does not need to be sought to share, and thus the concept of “overriding consent” is a misconception.

It is possible that the other parties, such as voluntary groups, may use consent as a lawful basis for some personal data processing. Each party is responsible for managing consent where they use consent as the lawful basis condition.

2.5. Proportionality and necessity

Proportionality, data minimization, necessity and not being excessive are factors to be taken into consideration when deciding whether to share personal information. In making the decision, employees must weigh up what might happen as a result of the information being shared against what might happen if it is not, and apply their professional judgement. It is for this reason professionals must ensure they comply with Article 5(1)(c) and share the adequate and relevant information, and limit that information to what is necessary for the achieving of the DSA aims.

3. Individuals

Organisations processing personal data are required to begin with the ethos of Data Protection by Design and Default (also known as Privacy by Design (PbD)). This means that we must consider and uphold the privacy of an individual’s data before we begin and throughout the processing taking place.

Each party agrees that they have undertaken a DPIA (Data Protection Impact Assessment), where they feel the processing meets the legislative criteria for a DPIA.

3.1. Right to be informed – Privacy notices

Where personal data is created or received by one of the parties, they are responsible, as required by law, for making the data subject(s) aware within a reasonable time frame that the organisation holds the data, what they will do with it, how long they will keep it, and who they will share it with (such as under this DSA). This is normally done through a privacy notice, whether written or verbal. Organisations agree that they will adhere to the transparency requirements of the UK GDPR and will issue appropriate notices which inform the data subject that the information will be shared with the parties under this agreement.

3.2. Data subject rights requests and complaints

Each organisation must have in place appropriate policies and processes to handle data subject requests made in line with data protection law, to ensure they are responded to within deadline and in an appropriate manner. Requests include; right of access, right to rectification, right to erasure, right to restrict processing, right to data portability, right to object and rights related to automated decision making including profiling.

If an individual successfully requests the erasure or limitation of use of their data (right to erasure, right to rectification, right to restrict processing, right to object), the party that has been informed by the data subject will communicate this to the other parties where relevant and appropriate. In each case each party is responsible for securely disposing of such information or limiting its processing.

Each party must have clear, fair and objective complaint procedures. Any complaints from individuals how their data is being processed or shared will be handled under the policy and processes of the organisation concerned.

3.3. Data subjects

The data subjects will be: children and their families at significant risk of needing residential placement, selected by a multi-disciplinary working group from the Dynamic Support Register.

4. Data

4.1. The data to be shared

Data that will be shared includes:

- name and contact details
- address
- age/date of birth
- ethnicity, physical and mental health needs
- Information collected in their Social Care Plan, Care/Support Plan/ Short breaks review, and Child and Family Assessments
- Information about siblings
- Information about housing and benefits.

4.2. Storing and handling information securely

Information must be stored and shared lawfully and securely. Special category data may need a higher level of security. The employee/organisation sharing the information must choose the most appropriate secure method of transfer and be responsible for its safe delivery.

Electronic records:

Organisations may have different electronic methods for storing and sharing information securely. Some have local restrictions which block access to information shared using specific tools.

Parties must make sure the chosen method is suitably secure and that access is only provided to those who need it, and only to the data needed.

Unencrypted email (i.e. sent in plain text over the public internet) must not be used to share information under this DSA.

Sharing methods that may be appropriate include:

- **Email encryption tools** where the email and attachments are encrypted from named sender to named recipient (e.g. Microsoft 365 Message Encryption; Egress Protect)
- **Secure corporately managed data repository and sharing platforms** (e.g. MS Teams;)
- **Secure File Transfer Protocols**
- **Virtual Private Networks**

The above are examples, get advice from your organisation's information security or IT teams on secure methods of sharing available at your organisation and document these in the organisation's process documents.

Phone/virtual meetings/face-to-face meetings:

Information may be shared over the phone, in a virtual meeting, or at face to face meetings. Meeting attendance and distribution of content, e.g. meeting minutes or recordings, must be limited to those with a need to know.

Sharing by telephone should be avoided unless the requirement is urgent and email is not practicable.

Individuals should be aware of their surroundings and the presence of other individuals or voice recognition or 'Internet of Things' devices (e.g. virtual assistant apps like Alexa, Cortana, SIRI) to ensure they aren't overheard by those that should not have access to the information discussed.

Paper records:

Printed paper records must always be kept to a minimum and kept secure whether in the office, home or during transit. Organisations must adopt an appropriate policy surrounding the use and transfer of paper records. Appropriate security methods must be applied when storing or disposing of paper records.

4.3. Access controls and security

All parties will ensure that they have appropriate technical and organisational security measures in place to guard against unauthorised or unlawful processing of personal data and against accidental loss or destruction of, or damage to, personal data.

All personal data held by partner organisations electronically will be stored in a secure network area with password protected entry and appropriate back-up functionality. The systems will be auditable so that it is possible for any auditor to establish who has accessed the system. All laptops, computers, and any other portable devices will be encrypted.

Any individual no longer required to have access will promptly have such access revoked by the line manager and Human Resources related to the relevant employer.

4.4. Outside UK processing

Parties are responsible for ensuring that if information is processed or shared outside the UK, that appropriate safeguards are in place and on condition that enforceable data subject rights and effective legal remedies for data subjects are available. These are for example, a legally binding and enforceable instrument between public authorities or bodies, binding corporate rules, and/or standard data protection contractual clauses.

4.5. Data quality

Each partner is responsible for ensuring the accuracy and relevance of the personal data that it processes and shares and must have clear processes in place for managing data quality.

Any party learning of the inaccuracy of personal data is responsible for informing the parties with whom that data has been shared.

4.6. Data breaches/incidents

All parties must have a clear policy and procedure regarding the reporting and handling of data protection breaches or data loss incidents. This must include assessing the level of risk to the data subject(s), as well as to make a decision on notifying the ICO within the statutory time frame of 72 hours. This complies with Articles 33 and 34 of UK GDPR.

If the incident may impact the processing of another party to this agreement, all relevant parties should be informed and appropriate coordination of the incident must take place. The decision to report the incident will lie with the data controller(s) of the information concerned. The parties agree to provide all reasonable and necessary assistance at their own expense to each other to facilitate the handling of any personal data breach in an expeditious and compliant manner.

It is confirmed that security breaches (including misuse or unauthorised disclosure) are covered by the partner's internal disciplinary procedures. If misuse is found there should be a mechanism to facilitate an investigation, including initiating criminal proceedings where necessary.

4.7. Retention and Disposal

Organisations are required by data protection legislation to document processing activities for personal data, such as what personal data is held, where it came from and with whom it has been shared. This Record of Processing Activity (ROPA) must include the retention period for the data. Information must not be retained for longer than necessary for the purpose for which it was obtained. Disposal or deletion of personal data once it is no longer required, must be done securely with appropriate safeguards, in accordance with that organisation's disposal policies.

5. Signatures



Elizabeth (Liz) Leach – Managing Director, Imagineer

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